

HOUSE BILL 1846

By Butler

AN ACT to amend Tennessee Code Annotated, Section 11-14-307; Section 11-14-406; Section 11-7-109; Title 66; Section 67-4-409; Title 67, Chapter 5, Part 10 and Section 67-5-2402, relative to rollback taxes.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 67-5-1008(d)(1), is amended by deleting the following language:

- (D) An owner fails to file an application as required by this part;
- (E) The land exceeds the acreage limitations of § 67-5-1003(3); or
- (F) The land is conveyed or transferred and the conveyance or transfer would render the status of the land exempt.

and substituting instead the following:

- (D) An owner fails to file an application as required by this part; or
- (E) The land exceeds the acreage limitations of § 67-5-1003(3).

SECTION 2. Tennessee Code Annotated, Section 67-5-1008(d)(3), is amended by deleting the language "personal responsibility of the current owner or seller of the land as provided in this part" and substituting instead the language "personal responsibility of the owner of the land as provided in this part".

SECTION 3. Tennessee Code Annotated, Section 67-5-1008(e)(3), is amended by deleting the language ", and shall be subject to rollback taxes, only if the land is used for a non-green belt purpose or after such land is sold by the bank, savings and loan association or a holder of a deed of trust or mortgage and then only as provided in subsection (d)".

SECTION 4. Tennessee Code Annotated, Section 67-5-1008(f), is amended by deleting the subsection and substituting instead the following:

(f) The sale of agricultural, forest, or open space land will result in the property being disqualified as agricultural, forest, or open space land. A buyer of property classified as agricultural, forest, or open space land must submit a new application in accordance with this part to renew the property's classification as agricultural, forest, or open space land. There is no liability for rollback taxes resulting from the sale and subsequent disqualification of property as agricultural, forest, or open space land, regardless of whether the greenbelt classification is renewed by the buyer.

SECTION 5. This act takes effect July 1, 2026, the public welfare requiring it, and applies to property sold, conveyed, or transferred on or after that date.